

# Terms & Conditions

## Phase 1 – Controlled Referral Program

**Effective Date:** [DATE]

**Contracting Entity:** [POOOL OPERATING ENTITY]

**Program Name:** POOOL Affiliate Program – Phase 1

## 1. Introduction

These Affiliate Terms & Conditions (“**Terms**”) govern participation in the POOOL Affiliate Program (the “**Program**”) operated by [POOOL OPERATING ENTITY] (“**POOOL**,” “**we**,” “**us**,” or “**our**”).

By applying to, joining, accessing, or participating in the Program, the applicant or affiliate (“**Affiliate**,” “**you**,” or “**your**”) agrees to be bound by these Terms and the Program Documents.

These Terms are intended to govern a controlled, referral-only Phase 1 affiliate model. These Terms must be read together with the other Program Documents, including the Affiliate Code of Conduct, Approved Marketing Materials Policy, Qualified Referral & Payout Policy, Affiliate Privacy Notice, onboarding acknowledgements, training requirements, and any additional program notices or rules properly issued by POOOL in accordance with these Terms.

## 2. Program Nature and Core Rule

2.1 The Program is a **controlled, single-level, referral-only** affiliate program.

2.2 In Phase 1, Affiliates act only as limited referrers. Affiliates may use only:

- general information,
- Approved Materials,
- their personal approved Referral Link or referral code,
- and official POOOL pages and materials,

to introduce users to POOOL.

2.3 Affiliates must not provide personal investment advice, recommend specific assets, promise or imply returns or safety, conduct private cold outreach, negotiate, close, handle customer funds or payments, or otherwise act as advisers, brokers, sellers, closers, or transaction intermediaries.

2.4 The Program is not an MLM, network-marketing, or downline-based structure. No Affiliate may earn from another Affiliate's activity, recruit for commission, or receive override compensation.

2.5 If an Affiliate goes beyond general information, approved materials, personal referral tools, and official POOOL sources, that conduct falls outside the intended Phase 1 model and may result in review, restriction, suspension, payout denial, clawback, or termination.

### 3. Definitions

For purposes of these Terms:

**"Affiliate"** means a person or entity approved by POOOL to participate in the Program and activated under these Terms.

**"Affiliate Communication"** means communication that uses a Referral Link, referral code, referral call to action, commission-related redirection, profile/story redirect, systematic promotional behavior, or other conduct that falls within the regulated affiliate channel under the Program rules.

**"Approved Materials"** means only those texts, visuals, pages, templates, scripts, assets, or other materials expressly approved by POOOL for Affiliate use.

**"Approved Referral Tool"** means a Referral Link, code, landing path, attribution mechanism, or similar tool issued or approved by POOOL.

**"Customer"** means a user, prospective user, investor, or prospective investor interacting with POOOL.

**"Direct Customer"** means a Customer not classified by POOOL as referral-sourced under POOOL's attribution rules.

**"Disqualifying Event"** means any event preventing a referral or commission from becoming or remaining qualified, including fraud, refund, chargeback, reversal, self-referral, related-party self-referral, referral-ring activity, policy breach, invalid

attribution, incomplete KYC, or any other event specified by POOOL in the Program Documents.

**“Holdback Period”** means the review period following a first eligible paid investment before any related commission may become payable. The launch default is intended to be 30 days unless otherwise approved in writing. **[LEGAL REVIEW REQUIRED]**

**“KYC”** means the know-your-customer, identity, verification, and onboarding review steps required by POOOL.

**“Lookback Period”** means the rolling period used to assess Tier unlock, currently intended to be 12 months unless otherwise approved in writing. **[LEGAL REVIEW REQUIRED]**

**“Phase 1”** means the first launch phase of the Program as a controlled referral-only model.

**“Private Conversation”** means a genuinely personal, non-systematic conversation that does not include referral tools, referral CTA, commission-related redirection, or advisory/sales conduct.

**“Program Documents”** means these Terms and the other policies, notices, acknowledgements, and operational rules incorporated into the Program.

**“Qualified Referral”** means a referral satisfying all qualification conditions defined by POOOL, including valid attribution, completed KYC, completed first eligible paid investment, holdback/review clearance, and absence of any Disqualifying Event.

**“Referral Customer”** means a Customer classified by POOOL as entering POOOL through a referral path under POOOL’s attribution logic.

**“Referral Link”** means the Affiliate’s personal approved referral link or equivalent attribution tool.

**“Referral Ring”** means a reciprocal, circular, coordinated, or manipulated referral structure intended to create improper commission eligibility, tier credit, or payout rights.

**“Single-Level”** means a program structure in which Affiliates may earn only from their own qualified direct referrals and not from recruited or indirect network activity.

**“Tier”** means an Affiliate status level under the Program’s 8-tier commission ladder.

## **4. Eligibility and Approval**

4.1 Participation in the Program is by approval only. No person or entity has a right to join, remain in, or be reactivated in the Program.

4.2 POOOL may accept, reject, delay, restrict, suspend, remove, or reactivate any applicant or Affiliate in accordance with applicable law, these Terms, and internal procedure. **[LEGAL REVIEW REQUIRED]**

4.3 The Program may be limited by jurisdiction, channel, product type, risk factors, operational capacity, compliance requirements, or any other criteria determined by POOOL. **[LEGAL REVIEW REQUIRED]**

4.4 No person may present themselves as an approved POOOL Affiliate unless and until:

- the application is approved,
- required onboarding is completed,
- required Program Documents are accepted,
- required training is completed,
- and the account is activated by POOOL.

## **5. Onboarding and Activation**

5.1 Before activation, the applicant must complete the onboarding process required by POOOL, which may include:

- application intake,
- KYC / identity verification,
- payout setup,
- tax-data submission,
- acceptance of Program Documents,
- mandatory acknowledgements,
- training,
- and a knowledge check or quiz.

5.2 At minimum, the applicant must accept or acknowledge, as applicable:

- these Terms,
- the Affiliate Code of Conduct,
- the Approved Marketing Materials Policy,
- the Qualified Referral & Payout Policy,
- the Affiliate Privacy Notice,
- and any required payout/tax acknowledgement.

5.3 No Referral Link, code, dashboard earning function, or active commission eligibility may be issued before final approval and activation.

5.4 POOOL may require refreshed acknowledgements, retraining, re-verification, or re-approval where policies change, inactivity occurs, risk arises, enforcement action is taken, or reactivation is requested. **[LEGAL REVIEW REQUIRED]**

## **6. Nature of Relationship; No Agency**

6.1 The Affiliate participates as an independent program participant only.

6.2 Nothing in these Terms creates any partnership, agency, employment, fiduciary, joint venture, brokerage, advisory, mandate, representation, franchise, or similar relationship between the Affiliate and POOOL. **[LEGAL REVIEW REQUIRED]**

6.3 The Affiliate has no authority to:

- bind POOOL,
- modify any POOOL term,
- negotiate on behalf of POOOL,
- approve any user,
- accept or handle funds for POOOL,
- provide legal, tax, investment, or financial advice on behalf of POOOL,
- or represent themselves as having authority not expressly granted in writing.

## **7. Permitted Activities**

7.1 Subject to these Terms and the Program Documents, the Affiliate may:

- share general information about POOOL in approved or non-misleading general terms,
- use Approved Materials only,
- share the Affiliate's personal Referral Link or code,
- direct users to official POOOL pages, documents, fee information, and risk information,
- and publish public-facing posts, videos, stories, blogs, or similar content consistent with the Program rules.

7.2 The Affiliate may describe personal experience only in a truthful, non-misleading, non-promissory manner and only to the extent such communication does not become advice, recommendation, persuasion, or sales conduct. **[LEGAL REVIEW REQUIRED]**

7.3 If a user asks a question requiring suitability guidance, individualized recommendation, return expectation, comparison-based steering, or decision support, the Affiliate must direct the user to official POOOL information or official POOOL-controlled support.

## **8. Private Conversations vs. Affiliate Communication**

8.1 Normal Private Conversations are not automatically treated as Affiliate Communication.

8.2 A conversation becomes Affiliate Communication when the Affiliate:

- shares a Referral Link or referral code,
- uses a call to action,
- directs the person to the Affiliate's profile, bio, story, or other referral path,
- engages in commission-related redirection,
- uses the conversation as part of systematic promotional behavior,
- or begins advisory, recommendation, persuasion, or sales conduct.

8.3 The mere existence of a Referral Link on an Affiliate's profile does not automatically reclassify every unrelated prior conversation. However, where the conversation and the later referral path are functionally connected as part of a referral journey, the conversation may be treated as Affiliate Communication.

8.4 POOOL will interpret this boundary by substance rather than form.

## **9. Approved Materials and Official Sources**

9.1 The Affiliate may use only Approved Materials and official POOOL sources where approval is required under the Program rules.

9.2 The Affiliate must not create, distribute, or use:

- unapproved pitch decks,
- altered official materials,
- unofficial FAQs,
- custom return sheets,
- side-deal materials,
- private deal documents,
- unofficial scripts,
- or other unapproved promotional materials.

9.3 POOOL may revise, replace, withdraw, or retire Approved Materials at any time. The Affiliate must promptly stop using superseded, withdrawn, or disapproved materials.

9.4 The Affiliate must comply promptly with any correction, takedown, cease-use, or remediation instruction issued by POOOL regarding content, claims, materials, channels, or referral conduct.

## **10. Referral Tools, Account Security, and Non-Transferability**

10.1 The Affiliate account, Referral Link, referral code, and related program credentials are personal, revocable, non-transferable, and may be used only by the approved Affiliate.

10.2 The Affiliate must not sell, assign, sublicense, lend, share, lease, delegate, route through, or otherwise transfer the Affiliate account, Referral Link, code, or access credentials without POOOL's prior written approval.

10.3 The Affiliate is responsible for maintaining the security of their access credentials and must notify POOOL promptly of any suspected compromise, misuse, or unauthorized access.

## **11. Referral Tracking and Attribution**

11.1 A referral counts only if it is validly attributed to the Affiliate under POOOL's approved attribution system.

11.2 Attribution must be:

- technically recorded,
- verifiable by POOOL,
- linked to an approved referral path,
- and not invalidated by fraud, abuse, policy breach, or operational override.

11.3 Missing, manipulated, uncertain, disputed, or non-verifiable attribution may result in referral exclusion, payout hold, investigation, or denial. **[LEGAL REVIEW REQUIRED]**

11.4 POOOL's system of record governs referral status, qualification status, and commission status, subject only to manifest system error or an approved internal exception process. **[LEGAL REVIEW REQUIRED]**

## 12. Qualified Referral

12.1 A referral becomes a Qualified Referral only when all of the following are satisfied:

- valid attribution,
- completed required onboarding and KYC,
- completed first eligible paid investment through official POOOL flows,
- satisfaction of any approved minimum-investment rule, if adopted,
- expiry of the applicable Holdback Period,
- and absence of any Disqualifying Event.

12.2 A click, signup, registration, incomplete KYC, partially completed onboarding, or initiated-but-unsettled investment does not by itself create a Qualified Referral.

12.3 A referral may cease to remain qualified if a later Disqualifying Event occurs.

12.4 Affiliates must not attempt to generate qualified volume through self-referral, related-party self-referral, controlled entities, nominee structures, household circumvention, reciprocal arrangements, referral rings, fake accounts, or any similar circumvention method.

## 13. Commission Structure and Tier System

13.1 The Program operates an 8-tier commission ladder:

- Access — 0.50%
- Plus — 0.75%
- Pro — 1.00%
- Elite — 1.50%
- Premium — 2.00%
- Platinum — 2.75%
- Signature — 3.50%
- Sovereign — 4.50%

13.2 Tier unlock is based only on the Affiliate's own qualified referral volume within the applicable Lookback Period.

13.3 No Tier may be unlocked, accelerated, preserved, or improved through:

- self-purchase,
- self-referral,
- related-party self-referral,



- entry fees,
- membership packages,
- recruiting sub-affiliates,
- team volume,
- downline activity,
- override logic,
- or side arrangements.

13.4 Exact Tier thresholds, the final Lookback configuration, and any reset or maintenance rules shall be set by POOOL separately and may be updated from time to time. **[LEGAL REVIEW REQUIRED]**

13.5 The Tier ladder is a performance schedule only and not a management hierarchy, employment rank, network structure, or compensation chain.

## **14. No MLM; No Downlines; No Recruitment Earnings**

14.1 The Program is Single-Level only.

14.2 The Affiliate may not:

- create or participate in a downline,
- recruit for commission,
- earn from another Affiliate's activity,
- receive override commissions,
- receive team commissions,
- receive recruitment-based bonuses,
- or build an upline/downline or MLM-style structure under any label.

14.3 Any attempt to recreate such structures directly or indirectly is prohibited.

## **15. Commission Accrual, Holdback, and Payability**

15.1 Commission may be provisionally tracked before it is payable.

15.2 No commission is payable unless and until:

- the referral is a Qualified Referral,
- the Holdback Period has expired,
- no Disqualifying Event exists,
- the Affiliate's payout and tax file is complete,
- any required finance/compliance review is completed,

- and the commission is approved for payout.

15.3 The launch default Holdback Period is intended to be 30 days from the first eligible paid investment unless otherwise approved in writing. **[LEGAL REVIEW REQUIRED]**

15.4 POOOL may delay, block, freeze, reverse, deny, offset, or claw back commissions where the qualifying basis is uncertain, invalid, disqualified, reversed, disputed, or under review. **[LEGAL REVIEW REQUIRED]**

15.5 No statement, dashboard display, estimate, provisional figure, or internal status display creates a vested right to payment until the commission becomes formally payable under the Program rules.

## **16. Payment Conditions and Payout Readiness**

16.1 Payouts are not automatic.

16.2 Before payout release, the Affiliate must provide complete and accurate payout and tax information as required by POOOL.

16.3 POOOL may classify payout recipients at minimum as:

- Indonesian individuals,
- Indonesian entities,
- and foreign recipients.

16.4 No payout may be released unless the Affiliate is marked payout-ready and tax-ready under POOOL's payout controls.

16.5 POOOL may place payouts on hold where:

- required data is incomplete,
- withholding or reporting review is pending,
- fraud or compliance review is ongoing,
- referral qualification remains unresolved,
- or any other Program risk requires temporary restriction.

## **17. Taxes**

17.1 The Affiliate is responsible for providing complete, accurate, and current tax-related information required for payout processing.

17.2 POOOL may apply withholding, classification, escalation, blocking, or reporting rules required by its tax-handling framework. **[LEGAL REVIEW REQUIRED]**

17.3 Incomplete, inaccurate, or missing tax information may delay or prevent payout.

17.4 Nothing in these Terms constitutes tax advice to the Affiliate. **[LEGAL REVIEW REQUIRED]**

## **18. Customer Disclosures and Official Information**

18.1 The Affiliate must not undermine, obscure, replace, pre-empt, discourage, or contradict POOOL's official disclosures, product information, fee information, or risk information.

18.2 Where the Affiliate interacts with a Referral Customer, the Affiliate must act consistently with POOOL's disclosure logic and customer confirmation requirements.

18.3 Official POOOL materials remain the controlling source for the Customer's decision-making process.

18.4 The Affiliate must not present their own explanation, summary, statement, or reassurance as a substitute for official POOOL disclosures.

## **19. Prohibited Conduct**

The Affiliate must not, directly or indirectly:

19.1 provide personal investment advice;

19.2 recommend any specific asset, project, listing, or offering;

19.3 promise or imply returns, safety, certainty, profit, suitability, or guaranteed outcomes;

19.4 engage in active selling, persuasion, objection handling, urgency tactics, or closing conduct;

19.5 engage in private cold outreach, including unsolicited direct messages, WhatsApp, Telegram, private chats, or calls used to push POOOL or a referral;

19.6 negotiate terms, side deals, special access, rebates, unofficial benefits, or off-platform arrangements;

19.7 handle, receive, collect, hold, forward, route, or control customer funds or payment steps;

19.8 use unapproved materials, altered materials, misleading edits, or unofficial scripts;

19.9 misrepresent their role, authority, relationship with POOOL, or approval status;

19.10 create or participate in self-referrals, related-party self-referrals, referral rings, attribution manipulation, fake accounts, fraud, or policy-evasion activity;

19.11 recruit Affiliates for commission or build a downline or team-based earning structure;

19.12 circumvent the Program rules through indirect wording, third parties, disappearing messages, alternative accounts, profile redirection tactics, or other evasive behavior.

## **20. Affiliate Representations and Undertakings**

The Affiliate represents, warrants, and undertakes that:

20.1 all information submitted to POOOL is accurate, complete, and not misleading;

20.2 the Affiliate will comply with these Terms and all Program Documents;

20.3 the Affiliate will use only approved and lawful channels and materials;

20.4 the Affiliate will not act as an adviser, broker, seller, closer, or payment intermediary;

20.5 the Affiliate will cooperate with onboarding, review, monitoring, complaint handling, investigation, takedown instructions, and payout controls;

20.6 the Affiliate will promptly update any information relevant to eligibility, payout readiness, tax status, or compliance risk;

20.7 the Affiliate will not do anything that could reasonably expose POOOL, users, or the Program to avoidable harm, complaint risk, fraud risk, or governance failure.

**[LEGAL REVIEW REQUIRED]**

## **21. Complaint Reporting, Cooperation, and Monitoring**

21.1 The Affiliate must promptly notify POOOL of any material complaint, dispute, chargeback-related allegation, suspected fraud, platform complaint, regulator contact, or data incident related to the Affiliate's Program activity. **[LEGAL REVIEW REQUIRED]**

21.2 POOOL may monitor Program participation, referral activity, use of materials, public affiliate content, qualification events, payout events, and complaint signals as part of Program governance. **[LEGAL REVIEW REQUIRED]**

21.3 The Affiliate must cooperate with reasonable requests for information, clarification, screenshots, content history, records, or other evidence relevant to a Program review. **[LEGAL REVIEW REQUIRED]**

21.4 Failure to cooperate may itself result in restriction, freeze, suspension, or termination.

21.5 POOOL may retain logs, acknowledgements, training records, referral records, payout data, investigation materials, and enforcement records for governance, audit, dispute, and compliance purposes. **[LEGAL REVIEW REQUIRED]**

## **22. Suspension, Freezing, Restriction, and Investigation**

22.1 POOOL may, with immediate effect where reasonably necessary, take one or more interim actions if it identifies or reasonably suspects:

- a Program breach,
- a qualification issue,
- fraud or abuse,
- a reversal issue,
- a complaint requiring review,
- misuse of materials,
- misuse of referral tools,
- data misuse,
- or any other conduct affecting customer protection, payout integrity, or Program integrity. **[LEGAL REVIEW REQUIRED]**

22.2 Interim actions may include:

- warning,
- takedown request,
- content correction requirement,
- dashboard restriction,
- link or code deactivation,

- referral qualification freeze,
- payout freeze,
- Tier-credit exclusion,
- suspension,
- mandatory retraining,
- or investigation hold.

22.3 A freeze or suspension does not by itself constitute a final finding of breach.

## 23. Clawback, Denial, Reversal, and Offset

23.1 POOOL may deny, reverse, offset, or claw back commissions where:

- the referral was not actually qualified,
- a Disqualifying Event occurred,
- payment was made in error,
- fraud, self-referral, related-party self-referral, referral-ring activity, or manipulation is found,
- the commission arose from prohibited conduct,
- reversal, refund, chargeback, cancellation, or unwind affected the qualifying event,
- or the Affiliate otherwise failed to satisfy Program conditions. **[LEGAL REVIEW REQUIRED]**

23.2 POOOL may apply clawback by:

- cancelling unpaid amounts,
- reversing payable status,
- offsetting future amounts,
- demanding repayment,
- or combining these methods where permitted. **[LEGAL REVIEW REQUIRED]**

23.3 The Affiliate must promptly repay improperly retained amounts where required by the Program rules or a valid demand by POOOL. **[LEGAL REVIEW REQUIRED]**

## 24. Term and Termination

24.1 These Terms begin when the applicant accepts them, but active participation begins only upon final approval and activation.

24.2 These Terms continue until terminated by either party or until participation ends under the Program rules.

24.3 POOOL may terminate or remove the Affiliate:

- for convenience on notice, **[LEGAL REVIEW REQUIRED]**
- immediately for serious breach,
- immediately for fraud, abuse, self-referral, related-party self-referral, referral-ring activity, payment handling, side deals, or materially prohibited conduct,
- for inactivity,
- for failure to maintain eligibility,
- for failure to maintain payout/tax readiness,
- or where continued participation is not appropriate for Program integrity.

24.4 The Affiliate may resign by written notice or through an approved account-closing method, subject to ongoing review, payout, clawback, and record-retention controls.

24.5 Termination does not eliminate POOOL's rights relating to prior breaches, suspended or frozen amounts, repayment demands, clawback, audits, records, confidentiality, IP protection, or any provision intended to survive.

## **25. Intellectual Property, Confidentiality, and Limited License**

25.1 POOOL retains all rights, title, and interest in the Program, platform, brand assets, trademarks, materials, documents, disclosures, systems, and referral infrastructure.

25.2 Subject to these Terms, POOOL grants the Affiliate a limited, revocable, non-exclusive, non-transferable, non-sublicensable right to use Approved Materials solely for compliant participation in the Program.

25.3 This license ends immediately upon suspension, withdrawal of approval, termination, or notice by POOOL.

25.4 The Affiliate must promptly stop using all POOOL brand assets, materials, and Program content when required by POOOL.

25.5 The Affiliate must not disclose or misuse non-public Program information, non-public payout information, internal enforcement information, internal review logic, or any non-public material provided to the Affiliate except as expressly permitted by POOOL. **[LEGAL REVIEW REQUIRED]**

## 26. Privacy and Data Handling

26.1 POOOL may process Affiliate-related and referral-related data in accordance with the Affiliate Privacy Notice and internal data-governance controls.

26.2 The Affiliate acknowledges that POOOL may process data for onboarding, referral attribution, qualification, payout and tax handling, fraud prevention, monitoring, complaints, investigations, and Program administration.

26.3 The Affiliate must process any Customer or referral-related data only as permitted by POOOL and must not collect, store, share, export, or misuse data outside approved Program purposes. **[LEGAL REVIEW REQUIRED]**

26.4 The Affiliate must promptly report any actual or suspected data incident, unauthorized access, disclosure, or misuse relating to the Program. **[LEGAL REVIEW REQUIRED]**

## 27. Disclaimer of Warranty and No Results Promise

27.1 POOOL does not guarantee that:

- any applicant will be approved,
- any referral will qualify,
- any specific Tier will be achieved,
- any commission amount will be earned,
- any payout timing will apply,
- or the Program will remain available in its current form.

27.2 The Program is operated subject to eligibility, review, product, operational, compliance, and business constraints. **[LEGAL REVIEW REQUIRED]**

## 28. Liability, Risk Allocation, and Indemnity

28.1 The Affiliate is responsible for their own conduct, channels, communications, and compliance with these Terms.

28.2 To the fullest extent permitted by applicable law, POOOL shall not be liable for indirect, incidental, special, consequential, or punitive losses arising from or related to the Program, including lost profits, lost opportunity, delayed commissions, or denied commissions. **[LEGAL REVIEW REQUIRED]**



28.3 To the fullest extent permitted by applicable law, POOOL's aggregate liability under or in connection with the Program shall be limited to the amount of commission properly approved but unpaid to the Affiliate during the [6 / 12]-month period preceding the claim, or such other limitation as approved by legal counsel. **[LEGAL REVIEW REQUIRED]**

28.4 The Affiliate shall indemnify and hold harmless POOOL and its affiliates, officers, directors, employees, and agents from losses, claims, liabilities, complaints, costs, and expenses arising out of or related to:

- the Affiliate's breach of these Terms,
- misuse of the Program,
- misuse of POOOL materials,
- prohibited conduct,
- unauthorized statements or promises,
- payment handling,
- privacy breach caused by the Affiliate,
- or other wrongful acts or omissions by the Affiliate. **[LEGAL REVIEW REQUIRED]**

## **29. Amendments, Program Changes, and Notices**

29.1 POOOL may update these Terms, Program Documents, commission logic, Tier logic, qualification rules, Approved Materials, onboarding steps, or Program operations from time to time. **[LEGAL REVIEW REQUIRED]**

29.2 Material changes may require refreshed acceptance, retraining, re-verification, or reactivation.

29.3 Continued participation after an effective update may constitute acceptance to the extent permitted by applicable law and the Program's acceptance flow. **[LEGAL REVIEW REQUIRED]**

29.4 POOOL may provide notices through the dashboard, onboarding flow, email, platform notifications, or other approved electronic means.

29.5 Summary pages, FAQs, website copy, onboarding copy, tooltips, and similar customer-facing or product-facing texts are provided for convenience and implementation support only and do not amend these Terms unless expressly stated by POOOL in writing.

## **30. Electronic Acceptance and Records**

30.1 Electronic acceptance, checkbox acknowledgement, digital logs, platform clicks, version-linked records, and similar electronic records may be used to evidence acceptance, notice, and Program status, subject to applicable law. **[LEGAL REVIEW REQUIRED]**

30.2 POOOL's recorded acceptance logs and version records govern unless disproved by manifest error or legally required correction. **[LEGAL REVIEW REQUIRED]**

## **31. Governing Operational Rule**

31.1 These Terms must be interpreted consistently with the core Phase 1 Program rule:

**POOOL Affiliates may introduce POOOL through general information, Approved Materials, their personal Referral Link, and official POOOL sources only. They may not advise, recommend, sell, negotiate, close, privately cold-outreach, or handle payments.**

31.2 If any conduct, workflow, or interpretation would in substance turn the Affiliate into an adviser, seller, closer, or transaction intermediary, that conduct is outside the intended Phase 1 model unless expressly approved under a separate written framework. **[LEGAL REVIEW REQUIRED]**

31.3 If another Program Document is unclear, this governing operational principle should control unless legal counsel determines otherwise. **[LEGAL REVIEW REQUIRED]**

## **32. Governing Law, Jurisdiction, and Dispute Handling**

32.1 These Terms shall be governed by the law and dispute-resolution framework designated by POOOL in the final launch version. **[LEGAL REVIEW REQUIRED]**

32.2 Until finalized, this section remains a placeholder and must be completed before production use.

## **33. Entire Agreement, Severability, Assignment, and Survival**

33.1 These Terms and the incorporated Program Documents form the agreement between POOOL and the Affiliate regarding the Program.

33.2 If any provision is held invalid or unenforceable, the remaining provisions shall remain in effect to the fullest extent possible, subject to applicable law. **[LEGAL REVIEW REQUIRED]**

33.3 The Affiliate may not assign, transfer, sublicense, delegate, or otherwise dispose of any Program rights or obligations without POOOL's prior written consent.

33.4 POOOL may assign, transfer, or reorganize the Program or these Terms within its business structure, subject to applicable law. **[LEGAL REVIEW REQUIRED]**

33.5 Provisions relating to restrictions, payment integrity, clawback, repayment, confidentiality, IP, monitoring, records, dispute handling, and other provisions intended by their nature to survive shall survive termination to the extent permitted by law. **[LEGAL REVIEW REQUIRED]**

## Acceptance

By selecting the acceptance box, signing electronically, or otherwise completing the approved activation flow, the applicant confirms that they:

- have read and understood these Terms,
- accept the Program as a controlled referral-only model,
- agree to the incorporated Program Documents,
- and understand that no active affiliate status or payout rights arise until POOOL activates the account.

### F. Final legal-review flags only

1. Final contracting entity, authority to contract, and whether a local operating entity or other structure is used.
2. Final governing law, jurisdiction, venue, arbitration, and dispute process.
3. Approval/rejection discretion wording, including any mandatory notice, fairness, or anti-discrimination limits.
4. Final no-agency / no-brokerage / no-advisory wording for the intended rollout jurisdiction.
5. Final treatment of personal experience statements by affiliates.
6. Final attribution-dispute and system-of-record clause.
7. Final Holdback Period.
8. Final Lookback Period, threshold schedule, and any tier reset/maintenance logic.
9. Final minimum-investment rule, if any.
10. Whether related-party self-referral should be defined more specifically.
11. Final payout/tax handling, withholding, and reporting wording.

12. Final complaint / regulator-contact reporting obligations.
13. Final confidentiality scope for non-public Program information.
14. Final interim freeze / suspension / takedown powers and any notice / cure / appeal rights.
15. Final clawback, offset, repayment, and post-payment recovery wording.
16. Final limitation of liability and indemnity language.
17. Final amendment mechanism and whether continued participation can constitute acceptance.
18. Final electronic acceptance / record-evidence clause.
19. Final privacy/data-handling obligations and any cross-border data limitations.
20. Any launch-specific financial-promotion, consumer-protection, or disclosure wording that counsel wants inserted directly into the Terms.

#### G. Readiness note

This revised draft is **strong and materially aligned** with the approved baseline. It is ready for:

- internal review,
- operational review,
- product / onboarding alignment,
- and focused legal review.